

26STCP01773 26STCP01773

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-02

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Case Number: 26STCP01773 Hearing Date: July 2, 2026 Dept: 316

BACKGROUND

On May

7, 2026, Petitioner 1515 Palisades, LLC filed the instant Petition for Release of Property from a Lien against Respondent Jireh Building & Construction, Inc.

No

opposition or response to the Petition has been filed.

TENTATIVE

RULING

The Petition

for Release of Property from a Lien is GRANTED.

LEGAL

STANDARD

After

a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." (Civ. Code, § 8480, subd. (a).)

A

petition for a release order shall be verified and shall allege the following:

(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.

(b) The county in which the claim of lien is recorded.

(c) The book and page or series number of the place in the official records where the claim of lien is recorded.

(d) The legal description of the property subject to the claim of lien.

(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.

(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.

(g) Whether an action to enforce the lien is pending.

(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

(Civ. Code, § 8484, subd. (a)-(h).)

Civil

Code section 8488 states in relevant part:

(a) At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. The petitioner has the initial burden of producing evidence on those

matters. The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of this article. The claimant has the burden of proof as to the validity of the lien.

(b) If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien.

(c) The prevailing party is entitled to reasonable attorney's fees.

(Civ. Code, § 8488, subds. (a)-(c).)

DISCUSSION

The Court shall grant the Petition for Release of Property from a Lien. Accordingly, the Court will also award attorney's fees in the amount of \$1,500.

Here, Petitioner seeks to release a lien entered on May 15, 2025, against the subject property. (Petition, ¶ 3.) A copy of the lien is attached. (See Petition, Exh. A.) The lien is in the amount of "\$88,355.66 for labor, services, equipment or materials allegedly furnished by Respondent for a private work of improvement at the Property." (Petition, ¶ 3.) Petitioner has listed the county in which the lien is recorded and the book and page numbers of the place in the official records where the lien recorded. (See Petition, ¶¶ 1-2.)

Petitioner alleges that Respondent did not foreclose the property lien within the 90-day period provided under Civil Code section 8460, and that no extension of credit was granted. (Petition, ¶ 6.) Petitioner further alleges that Respondent is unwilling or refuses to execute a release of the property lien. (Petition, ¶¶ 8-10.) Lastly, the only action to enforce the lien was dismissed by the Court on April 2, 2026. (Petition, ¶ 5, Exh. B.)

The Court finds that Plaintiff has made all necessary allegations. (See Civ. Code, § 8484, subd. (a)-(h).) Accordingly, the Court shall grant the Petition. (See Civ. Code, § 8488, subds. (a)-(b).)

Petitioner

is entitled to reasonable attorney's fees. (See id. at subd. (c).)

However, Petitioner only makes a general request for attorney's fees without requesting a specific amount or attaching a supporting declaration demonstrating how much time counsel spent on this matter. Petitioner may submit a separate request for attorney's fees.

CONCLUSION

For the foregoing reasons, the Petition for Release of Property from a Lien is GRANTED.